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CASE #	CASE NAME	HEARING NAME
CVME2501589	MARTINEZ VS GENERAL MOTORS	MOTION FOR ATTORNEYS' FEES

Tentative Ruling: GRANT

\$15,626.25 in attorneys' fees and \$943.00 in costs.

This is a lemon law case. On 6/22/21, Alexander Martinez ("Plaintiff") purchased a 2021 Chevrolet Suburban, which was manufactured by General Motors, LLC ("Defendant"). Plaintiff contends the vehicle had defects that could not be repaired.

The complaint asserts the following causes of action: (1) breach of implied warranty of merchantability, (2) breach of express warranty, and (3) breach of the Song-Beverly Warranty Act.

Plaintiff brings this motion. The parties settled this matter on 10/22/25, with reasonable attorney fees and costs to be determined by the Court. He seeks \$29,556.25 in attorney's fees (which includes a 1.1 multiplier) and \$1,121.90 in costs. He argues that as the prevailing party, he is entitled to the fees and costs sought. He asserts the fees and costs sought are reasonable and a multiplier is justified.

In opposition, Defendant contends the amount sought is excessive for a case that took only 10 months from start to finish. It argues that the time spent on this matter is excessive. It argues that a multiplier is not warranted. It asserts that not all the costs sought are compensable.

In reply, Plaintiff reasserts the arguments set forth in its moving papers. He contends he is entitled to the fees and costs sought.

Under Civil Code § 1794(d) (Song-Beverly), "[i]f the buyer prevails in an action under this section, the buyer shall be allowed by the court as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." The parties settled at mediation. Both sides agree that the parties

agreed that the court would resolve the issue of fees and costs.

Defendant argues that the time spent on this matter was unreasonable. The matter of reasonableness of a party's attorney's fees is within the sound discretion of the trial judge. (*Bruckman v. Parliament Escrow Co.* (1989) 190 Cal.App.3d 1051, 1062.) Courts generally consider several factors in determining the reasonableness of a party's attorney's fees. These include "the nature of the litigation, the difficulty of the litigation, the attention given to the issues, the success of the attorney's efforts, and time consumed. [Citation omitted.]" (*PLCM Group, Inc. v. Drexler* (1999) 72 Cal.App.4th 693, 708.)

Although a fee request should be documented in detail, the court is entitled to make its own evaluation of the reasonable worth of the work done considering the nature of the case and the credibility of counsel's declaration, unsubstantiated by time records and billing statements. (See *Weber v. Langholz* (1995) 39 Cal.App.4th 1578, 1587; see also *Bernardi v. County of Monterey* (2008) 167 Cal.App.4th 1379, 1394.) Specifically, in exercising its discretion, the Court may consider all facts and the entire procedural history of the case in setting the amount of a reasonable attorney's fee award. (*Bernardi, supra*, 167 Cal.App.4th 1379, 1394.)

Lodestar is the objective starting point to determine if attorney's fees are reasonable. (*Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1242.) Lodestar is calculated by assessing the reasonable rate for comparable services in the local community, multiplied by the reasonable number of hours spent on the case. (*Id.*) Lodestar requires the court to determine what a reasonable rate and number of hours expended is. (*Concepcion v. Amscan Holdings, Inc.* (2014) 223 Cal.App.4th 1309, 1320.)

Defendant does not dispute the reasonableness of the hourly rate sought but does assert that the 35.8 hours spent and an additional 6 hours of anticipated time to be incurred in this matter is unreasonable.

This lawsuit was filed on 1/29/25. A settlement agreement was entered into on 10/22/25. (Exhibit A to Nicholas Bravo's Declaration.) This and a motion for protective order are the only motions that have been filed in this lawsuit. The complaint has not been amended. Due to this, the amount of time spent on this matter does appear unreasonable. Defendant argues that the .75 billed to prepare the complaint is excessive because it is a form complaint. This argument is persuasive. Plaintiff's name, the name of the dealer, when he bought the vehicle, and type of vehicle purchased are the only factual allegations that appear specific to Plaintiff's case, the remaining allegations appear to be formulaic. Based on Exhibit B to Cameron Major's Declaration, the complaint used in this matter has been used in other matters with only the matters discussed above changed. As such, the .45 reduction proposed by Defendant is appropriate.

Defendant asserts that the 1.5 hours billed to prepare the initial disclosure is excessive. Initial disclosures are also standardized in nature. The 1.5 to prepare the document does appear a little excessive. As such, it appears reasonable to reduce the time spent by .8.

Defendant contends the 8.5 billed to prepare an opposition to Defendant's motion for a protective order and preparation of the hearing (entries for 6/24/26 and 6/25/25) is excessive. This assertion appears correct. Protective orders are standard in lemon law matters. Over 8 hours appears excessive for such a common issue. As such, the amount sought is reduced by 3.8 hours.

Defendant argues the time billed for preparing a mediation brief, talking to the client, preparing for mediation, and attending mediation is excessive at 5.5 hours. Without knowing how long mediation took, it is unclear whether a significant reduction is needed. The 1 hour billed for a short mediation brief (this is the description used by Defendant), appears excessive for the formulaic nature of lemon law matters. As such, this amount is reduced by .6.

Defendant asserts that the amount sought for this motion – an anticipated 6 hours is excessive. This motion is a standard attorney's fees motion for a lemon law matter. Due to this,

their request to reduce the amount sought by 3 hours appears appropriate.

Defendant seeks to have the number of hours billed in this matter reduced by the 4 hours spent by Plaintiff's counsel in initial intake. It argues that Song-Beverly does not mandate reimbursement for attorney's fees incurred before an individual was represented by the attorney. It cites to *Dominguez v. Am Suzuki Motor Corp.* (2088) 160 Cal.App.4th 53, 58. However this case does not appear applicable because Civil Code § 1794(d), the provision Plaintiff seeks fees under, was not applicable in this matter. (*Dominguez, supra*, 160 Cal.App.4th at 60.) Civil Code § 1794(d) states that the purchaser can recoup the reasonable attorney's fees incurred "in connection with the commencement and prosecution of such action." It does not specifically allow for fees incurred prior to retention of counsel. These types of fees are costs incurred by counsel in doing business. Its time spent by counsel to determine whether they will take the case. These types of fees do not appear to be the type of costs that should be passed on to Defendant. As such, the number of hours spent on this matter is reduced by 4 hours.

Defendant argues that Plaintiff improperly billed 2 hours on 4/18/25 to review the answer and proposed protective order. However, it only appears that 1 hour was billed to review these documents, make notes, and to calendar a "NOD" (which might be a notice of disclosure). The other hour billed for during this time, which Defendant appears to include in the 2-hour calculation, was for preparing notes regarding affirmative defenses, issues to investigate for discovery, and issues list for the deposition of the person most qualified. The entries regarding reviewing the answer and proposed protective order are not limited to just reviewing these documents. These entries do not appear to be excessive since they include multiple tasks.

Defendant argues that 2.7 hours should be reduced from the amount sought because too much time was spent talking to the client and reviewing documents. Unfortunately, Defendant does not identify which billing entries it takes issue with. The total amount of time is 4.7 hours.

Without knowing what entries are at issue, this argument is not persuasive. It is also difficult, based on the minimal hours at issue, to determine whether any billing for discussing matters with a client is excessive. As such, these reductions are not made.

Defendant also argues that 3.15 hours that they contend are secretarial in nature should be reduced. However, Defendant fails to indicate which billing entries are at issue. As such, this argument is not persuasive.

These reductions (12.65 hours) bring down the hours billed in this matter to 23.15, which is a more reasonable amount. This would result in an award of \$15,626.25.

Defendant contends that Plaintiff's request for a multiplier should be denied. This argument is persuasive. When determining whether to apply a multiplier, the court should consider "the novelty and complexity of the issues, the skill and expertise of counsel, the extent that the litigation precluded other employment and the contingent nature (or risk) of nonrecovery." (*Robins v. Alibrandi* (2005) 127 Cal.App.4th 438, 448.) The purpose of the lodestar enhancement is "to bring financial incentives for attorneys enforcing important constitutional rights. into line with incentives they have to undertake claims for which they are paid on a fee-for-services basis." (*Ketchem v. Moses* (2001) 24 Cal.4th 1122, 1132.) The party seeking enhancement has the burden of proof. (*Id.* at 1138.) The court is not required to grant a request for an enhancement simply because an attorney takes a matter on a contingency basis, but it can do so in appropriate cases. (*Id.* at 1138.) "[A] trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable. (*Id.* at 1139.) This case is not novel or complex. It is a routine lemon law case. The complaint does not include any novel or new theories of liability. Although counsel worked on a

contingency basis, because attorney's fees are mandatory under the Song-Beverly Act, the risk that counsel would not recover fees for their hours worked was relatively low. As such, a multiplier does not appear warranted and is not awarded in this matter.

A "prevailing party is entitled as a matter of right to recover costs in any action or proceeding." (CCP §1032(b).) A prevailing party is "the party with a net monetary recovery, a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant." (*Id.* at (a)(4).) Neither party disputes that Plaintiff is the prevailing party and entitled to some costs.

CCP §1033.5 provides a list of costs that are allowable and those that are not. CCP §1033.5(c)(4) provides that any items not identified as allowable and not specifically identified as prohibited, may be permitted at the Court's discretion. "Allowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation." (CCP §1033.5(c)(2).)

Pursuant to the Song Beverly Act, if the buyer prevails in an action under this section, the buyer shall be allowed to recover, as a part of the judgment, a sum equal to the aggregate amount of costs and expenses, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of the action. (Civil Code § 1794(d).) The additional term "expenses" was included in this section to cover items that would not otherwise be included in the detailed statutory definition of "costs" under CCP § 1033.5. (*Jensen v. BMW of North America* (1995) 35 Cal.App.4th 112, 137-138, overruled on other grounds in *Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189, 205.) "If the items on a verified cost bill appear proper charges, they are prima facie evidence that the costs, expenses and services therein listed were necessarily incurred. Where the items are properly object to, they are put in issue, and the burden

of proof is upon the party claiming them as costs.” (*Levy v. Toyota Motor Sales, U.S.A., Inc.* (1992) 4 Cal.App.4th 807, 816.)

Defendant argues the filing fees sought are improper. However, Plaintiff has provided invoice regarding these fees and filing fees are recoverable under CCP § 1033.5. Defendant does not provide any evidence that these fees were improperly incurred. They take issue with the conveyance fee charged. However, the only additional fee is an “EFM” fee, which is an electronic filing management fee. I have seen this type of fee charged by other eFiling providers. Defendant does not provide any evidence that this fee is substantially more than other eFiling providers charge. As such, there is no reduction on these fees.

Defendant argues that it should not be charged the fees for Plaintiff depositing jury fees because this matter did not go to trial. Jury fees are allowable costs under CCP § 1033.5(a)(1). This amount is not refundable under CCP § 631. While this matter did not go to trial, it was a necessary fee to preserve the right to a trial. Due to this, this cost is allowed.

Defendant argues that the service of process fees sought in serving JC Auto Enterprises CA, LLC (“JC Auto”) is improper. JC Auto was named as a defendant in this matter. Plaintiff chose to bring this entity as a defendant, not Defendant. It is unclear why this cost should be passed on to Defendant. As such, the \$177.60 sought in serving JC Auto is reduced from the amount of costs sought.

Plaintiff does seek \$80 in fees for this motion. In opposition, Plaintiff has established it actually incurred \$78.30 in fees. As such, the cost is reduced by \$1.30.

Based on this, all costs sought are reduced to \$943.00. In reply, Plaintiff seeks to recover another \$18.30 in costs. However, no notice was provided to Defendant about these fees and Plaintiff fails to provide any authority that seeking said fees for the first time in reply is appropriate. These costs are disallowed.